

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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EOLIA ELLIOT,

Plaintiff,

-against-

CITY OF NEW YORK; Alexander Sosa, Shield No. 2549,
individually and in his/her official capacity, and NYPD
Officers JOHN and JANE DOE 1 through 10, individually
and in their official capacities (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx
County as the place of trial.

Basis of Venue CPLR §
504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
July 25, 2017

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 1800
New York, New York 10279
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TO:

ZACHARY W. CARTER

Corporation Counsel of the City of New York

Attorney for Defendant THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

Alexander Sosa Shield# 2549; Narcotic Borough Manhattan North, 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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EOLIA ELLIOT,

Plaintiff,

VERIFIED COMPLAINT

-against-

Jury Trial Demanded

CITY OF NEW YORK; Alexander Sosa, Shield No. 2549, individually and in his/her official capacity, and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Index No.

Defendants.

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Plaintiff Eolia Elliot, by his attorneys, LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff Eolia Elliot, is an African American female and has been at all relevant times a resident of Bronx County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants, Alexander Sosa, Tax / Shield No. 2549 and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. The incident alleged herein occurred in Bronx County and is properly venued in Bronx County. See CPLR § 504(3).

STATEMENT OF FACTS

9. On or about November 13, 2015, at or around 6:00 a.m., PLAINTIFF was lawfully within the vicinity of 383 East 141st Street, Bronx, New York 10154.

10. Several unidentified New York City Police Officers, including Defendant Detective Alexander Sosa, Shield No. 2549, and the DOE defendants, burst into PLAINTIFF's apartment, yelling and screaming for everyone to wake up.

11. The officers unlawfully searched the premises, without any warrant, despite the fact that they had no lawful basis to do so.

12. Notwithstanding the fact that defendants had no probable cause to believe that PLAINTIFF had committed any crimes or offenses, defendants placed PLAINTIFF into handcuffs and under arrest.

13. Upon searching the residence, Defendant officers claim to have found drugs in a different room from where PLAINTIFF was sleeping.

14. Several other individuals were also arrested in connection with this incident.

15. PLAINTIFF was subsequently transported to the police precinct with her criminal co-defendants.

16. At the precinct the officers, falsely informed employees of the Bronx County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF was in possession of drugs.

17. Neither Defendant officers nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

18. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

19. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/or continue the criminal prosecution of PLAINTIFF.

20. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendant's claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

21. From the precinct, PLAINTIFF was then transported to Central Booking, and was subsequently arraigned.

22. PLAINTIFF was released after spending approximately twenty-four (24) hours in custody.

23. PLAINTIFF appeared in court as required, and on March 9, 2016, PLAINTIFF's criminal case was dismissed on a motion by the District Attorney.

24. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

FIRST CLAIM
UNDER N.Y. STATE AND FEDERAL LAW
FALSE ARREST AND FALSE IMPRISONMENT

25. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

26. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

27. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

SECOND CLAIM
UNDER 42 U.S.C. § 1983
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

62. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

63. Defendants created false evidence against PLAINTIFF.

64. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office and/or U.S. Attorney's Office.

65. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

66. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

67. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

28. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

29. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

30. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

31. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

32. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

33. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

34. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

36. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

37. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

**FIFTH CLAIM
UNDER N.Y. STATE AND FEDERAL LAW
MALICIOUS ABUSE OF PROCESS**

38. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

40. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guarantee to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

42. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

43. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SIXTH CLAIM
UNDER N.Y. STATE AND FEDERAL LAW
UNLAWFUL SEARCH AND SEIZURE**

44. PLAINTIFF repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

45. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**SEVENTH CLAIM
UNDER N.Y. STATE AND FEDERAL LAW
MALICIOUS PROSECUTION**

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

60. Defendants misrepresented and falsified evidence before the Bronx County District Attorney and/or U.S. Attorney's Office.

61. Defendants did not make a complete and full statement of facts to the District Attorney and/or U.S. Attorney's Office.

62. Defendants withheld exculpatory evidence from the District Attorney and/or U.S. Attorney's Office.

63. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

64. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

65. Defendants acted with malice in initiating criminal proceedings against plaintiff.

66. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

67. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

68. Defendants acted with malice in continuing criminal proceedings against plaintiff.

69. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

70. Specifically, defendants' made the aforementioned false and misleading allegations regarding obtaining valid consent to unlawfully search plaintiff apartment, Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff's favor on or about March 9, 2016.

71. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for her safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**EIGHTH CLAIM
UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY**

73. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

75. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

76. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

77. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

79. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

80. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

81. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of

this action.

DATED: New York, New York
July 25, 2017

/s/

Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for plaintiff Eolia Elliot in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: July 25, 2017
New York, New York

_____/S/_____
Katherine E. Smith